



STATE OF COLORADO

DIVISION OF MINERALS AND GEOLOGY

Department of Natural Resources

1313 Sherman St., Room 215

Denver, Colorado 80203

Phone: (303) 866-3567

FAX: (303) 832-8106

RECEIVED

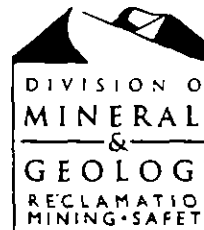
AUG 16 2001

Division of Minerals and Geology

RECEIVED

JUL 19 2001

Division of Minerals and Geology



TRANSFER OF PERMIT AND SUCCESSION OF OPERATORS

APPLICATION FORM

Bill Owens
Governor

Greg E. Walcher
Executive Director

Michael B. Long
Division Director

The application for a Transfer of Permit and Succession of Operators must contain four (4) major parts: 1) an Application Form; 2) an Application Fee; 3) a Performance Warranty (attached as part of the Application Package) bearing the original notarized signature of the Successor Operator; and, 4) a replacement Financial Warranty provided by the Successor Operator, bearing an original notarized signature. To expedite processing, please provide the information in the format and order described below.

M-77-341
Receipt 5768
\$125.00

I. FINANCIAL WARRANTY INFORMATION (Choose ONE Option):

1. Option A: _____
(Initial & Date)

I wish to WAIVE MY RIGHT to a 30-day processing time to allow the Division of Minerals and Geology to recalculate the Financial Warranty requirements. If you choose Option A you should not submit a Financial Warranty and Performance Warranty until the Division notifies you of the correct amount of your warranty requirements.*

2. Option B: X _____
(Initial & Date)

I DO NOT WISH TO WAIVE MY RIGHT to a 30-day processing time. I hereby submit a replacement Financial Warranty for the same dollar amount as the Financial Warranty maintained by the current operator. I understand that the Division of Minerals and Geology will recalculate the required reclamation bond within 60-days from the date that the transfer is completed and the required FINANCIAL WARRANTY COULD BE SUBSTANTIALLY INCREASED at that time. As the new operator, I agree to be responsible for posting any required increase to the financial warranty for good cause shown, in a form acceptable to the Board, within 60-days of such notice.

SO APPROVED
BY *lode* *9/17/01*

RECEIVED

AUG 16 2001

- 2 -

II. ADMINISTRATIVE INFORMATION:

Division of Minerals and Geology

1. Permit Number: M-77-341

2. Operation Name: Larimer County Quarry

3. Current Permitted Operator:

Contact Person: John Lohr

Company Name: Southdown, Inc.

Street: P.O. Box 529

City: Lyons

State: Colorado Zip Code: 80540

Area Code: 303 Telephone: 823-2100

4. Successor Operator:

Contact Person: John Lohr

Company Name: CEMEX, Inc.

Street: P.O. Box 529

City: Lyons

State: Colorado Zip Code: 80540

Area Code: 303 Telephone: 823-2100

IRS Tax ID No. or Social Security No.: [REDACTED]

5. Application Fee: \$100.00 for Hard Rock operations; \$125.00 for Construction Materials operations

Make check payable to the Division of Minerals and Geology

RECEIVED

AUG 16 2001

- 3 -

Division of Minerals and Geology

III. 1. Yes: X

No:

As the successor operator do you have a complete copy, as is available, of the approved reclamation application to include any permit modifications?

A copy of the approved application and any modifications to the permit may be purchased through the Division. Unless you specify which portions of the permit file you want copied the entire file will be copied. The Division will send the entire file, or portions you specify, to an outside vendor and you will be billed accordingly.

2. Yes: X

No:

Have you verified that the permit area you are assuming reclamation responsibility for is the area described in the approved permit application?

3. Yes: X

No:

Have you verified that you have legal right of entry to conduct mining and reclamation?

RECEIVED

AUG 16 2001

Division of Minerals and Geology

- 5 -

PERMITTEE

Southdown, Inc.
Name of Permittee
By Daniel W. Heintz
Signature of Officer

Vice President, Environmental Affairs
Title of Officer

SUCCESSOR OPERATOR

CEMEX, Inc.
Name of Successor
By Daniel W. Heintz
Signature of Officer

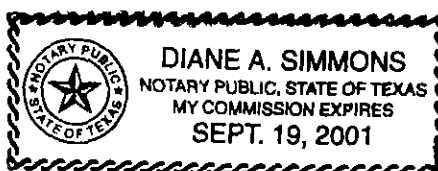
Vice President, Environmental Affairs
Title of Officer

NOTARY FOR PERMITTEE

State of Texas
County of Harris

The foregoing instrument was acknowledged before me this 8th day of March, 2001, by Daniel W. Heintz as Vice President of Environmental Affairs of Southdown, Inc. 8/15/01 das

Notary Public Diane A. Simmons
My Commission Expires _____

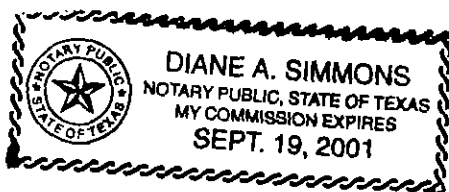


NOTARY FOR SUCCESSOR

State of Texas
County of Harris

The foregoing instrument was acknowledged before me this 8th day of March, 2001, by Daniel W. Heintz as Vice President of Environmental Affairs of Cemex, Inc. 8/15/01 das

Notary Public Diane A. Simmons
My Commission Expires _____



CONSENT OF STATE

- (a) Consent is hereby granted to the transfer of the Permit referred to from Southdown, Inc. to CEMEX, Inc.
- (b) CEMEX, Inc. is hereby recognized as Successor Operator under such Permit.
- (c) The Performance and Financial Warranty substitution above proposed is hereby accepted and approved.

STATE OF COLORADO
DEPARTMENT OF NATURAL RESOURCES
MINED LAND RECLAMATION BOARD
DIVISION OF MINERALS AND GEOLOGY

By



Division Director

Date Executed

